

when the plaintiff dismisses his own Bill, but only to a dismissal after the cause is set down. The old practice still obtains, when the plaintiff dismisses his own Bill before the cause is set down. He may dismiss, before the defendant has appeared, without costs. (*Thompson vs. Thompson*, 7 Beaven 350). If after appearance, it must be on payment of costs, and, if a new Bill is filed for the same cause before such costs are paid, the Court will stay proceedings in the new suit, until they are paid. But on payment of such costs the plaintiff can (having dismissed his Bill before the cause is set down) file a new one for the same cause of suit without obtaining the leave of the Court. It is submitted, that it would have been better to carry the provision of the above 67th Order further, and to have prevented the plaintiff filing a new Bill, for the same cause, without leave of the Court, if he dismissed after appearance. Such a provision could work no hardship, because on a proper case made the Court could always order the dismissal without prejudice to a new suit. The benefit would be, that the defendant would be enabled to know, whether or not he was subject to be again made a defendant for the same cause of action.

If cause not set down, Plaintiff may always dismiss without prejudice to filing a new bill.

Rule as to costs.

Question of the propriety of this indulgence to the Plaintiff.

The above Orders 64, 65, 66 and 67, are precisely like the English Orders 114, 115, 116 and 117, of 1845, with the following exceptions. In the first article of the English Order 114, which answers to the above Order 64, the words are "after the answer, or the last of the answers is found or deemed to be sufficient." This is varied in the above Order, because now, under the Order 30, of 1850, any answer is sufficient, exceptions for insufficient being by that Order abolished. Again in the Order 114 there is an article as follows, "If the Plaintiff, having undertaken to reply to a *plea* to the whole Bill, does not file his replication within four weeks after the date of his undertaking", &c. This is omitted in the Orders of 1850, because, by Order 25 of 1850 pleas are abolished. In the commencement of the English Order 115, which answers to the above

Orders 64, 65, 66, and 67, compared with English Orders 114, 115, 116, and 117,